



Eugene Krukas, Esq
(Admitted NY, NJ)

Michael A. Vicario, Esq
(Admitted NY, NJ, PA)

KRUKAS | VICARIO

ATTORNEYS AT LAW

P: (516) 780-0760 F: (516) 717-3605
2704 GRAND AVE, SUITE 4, BELLMORE NY 11710
KVJUSTICE.COM

August 3, 2026

Jimmy Hu
320 W 38th St. Apt. 2427
New York, NY 10018

Re: Hu v. Hyundai

Dear Dr. Hu,

As per conversations with our office, please allow this letter to serve as a retainer agreement detailing the terms under which we have agreed to represent you in a lawsuit, an article 75 proceeding, against the manufacturer of your vehicle, a 2024 Hyundai Ioniq 5, Vin# KM8KNDDF9RU253237.

SCOPE OF REPRESENTATION

Eugene Krukas PLLC d/b/a Krukas & Vicario Attorneys at Law, will represent you in an Article 75 Petition pursuant to the New York New Car Lemon Law statute, seeking to overturn the Arbitration decision of AG Case # NC-1-1249605441, an arbitration proceeding where you were not represented by our firm. This representation includes preparing and filing pleadings and motions, appearing at court conferences and ultimately conducting a hearing if the matter has not been resolved by then.

We may, at our option, withdraw from the case and cease to represent you for any reason, subject to the professional responsibility requirements to which attorneys are subject. Unused attorney fees will be returned.

By entering into this agreement, we may agree (but are not required) to handle any appeals or other post-judgment matters, such as collection issues associated with this case. A decision to handle any appeal or post-judgment matter will be made on a case by case basis should such a matter arise. Should we elect to handle any appeal or post-judgment matter, your further consent will be required.

The scope of this retainer does not extend to a subsequent arbitration proceeding, should one be ordered. Should you wish to retain us for that proceeding, a separate retainer will be needed.

EXPLANATION OF ATTORNEY FEES

You agree to pay an attorney fee of \$3,000 + \$1,000 for each in person court appearance, whether we win or lose the case. The \$3,000 shall be paid in advance, and the additional charges will be billed if applicable. The total out of pocket cost for Dr. Hu is limited to \$5,000, even if there are more than 2 court appearances

Shall we be successful, we will seek reimbursement of all attorney fees, including “additional attorney fees” over \$5,000 and costs from the Respondent manufacturer pursuant to the “fee-shifting” provisions of the New Car Lemon Law. If attorney fees and costs are awarded by the Court, actual costs or disbursements, will be reimbursed to the firm first, and then the attorney fee award will be used to reimburse you for attorney fees personally paid pursuant to the above, before then going to the firm for any “additional attorney fees”. The same order would apply to attorney fees recovered by settlement.

Our attorney fees will be calculated as follows: \$500 an hour for attorneys and \$175 an hour for paralegals during the course of the litigation. We will keep track of the time we spend on your case and to seek reimbursement from the manufacturer.

If during the course of the litigation, the manufacturer proposes an offer of settlement, we will immediately contact you to discuss the offer. You will decide whether to accept or reject the offer.

YOUR COOPERATION IN THIS LITIGATION

Due to the fact that we have agreed to limit our attorney fees directly from you, we are making this agreement provided that none of the four (4) circumstances described below arises where your actions would prevent our firm from obtaining compensation from the defendant under the “fee-shifting” provisions of the law.

Specifically, you will never be billed for additional attorney fees unless: (1) you terminate our services during the pendency of the case; (2) you accept a settlement offer that does not include compensation for all of the attorney fees incurred by our firm; (3) you sell or trade-in your vehicle without first obtaining our express approval to do so; (4) you refuse to cooperate or assist in the prosecution of your lawsuit.

Therefore, you will never be responsible for additional attorney fees or expenses unless one of these four (4) provisions above occurs.

Notwithstanding, recovery from you personally will be limited to \$5,000.

REPRESENTATIONS

It is expressly agreed and understood that no promises or guarantees as to the outcome of the case have been made to you. You further acknowledge that obtaining a judgment does not guarantee that the opposing party will be able to satisfy the judgment. It is further expressly understood and agreed that no other representations have been made to you, except for those set out in this Agreement.

CLIENT COMMUNICATION

You will keep us advised of your whereabouts at all times, and provide us with any changes of address, phone number or business affiliation during the time period which our services are required, and shall comply with all of our reasonable requests in connection with the preparation and presentation of the aforesaid representation.

LEGAL CONSTRUCTION

In case any one or more of the provisions contained in this Agreement shall, for any reason, be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provisions thereof and this Agreement shall be construed as if such invalid, illegal, or unenforceable provision had never been contained herein.

PRIOR AGREEMENTS SUPERSEDED

This Agreement constitutes the sole and only Agreement of the parties and supersedes any prior understandings or written or oral agreement between the parties respecting the within subject matter.

RETAINER AGREEMENT

By signing below, you are agreeing to enter into an attorney/client relationship with this office. You agree to make your best effort to assist in the case, and to follow the guidelines stated in this letter. You further agree to not settle this matter on your own without the written consent of this office.

If you ever have any questions or concerns throughout the litigation process, do not hesitate to contact me. If you object to anything herein, please contact this office. We look forward to providing you with excellent service.

Very truly yours,



Michael A. Vicario, Esq.

Accept and Agree:

Dr. Jimmy Hu